BRENDAN NGEHSI NEWANFORBI
[CURRENT SERVICE ADDRESS]
[TELEPHONE] | [EMAIL]
Petitioner, in propria persona

SUPERIOR COURT OF CALIFORNIA
COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner,
v.
CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; and DOES 1–10, Respondents.

Case No. 26CV191136 | Department 25
Assigned to: Hon. Jenna M. Whitman

DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF MOTION FOR WRIT RELIEF

I, Brendan Ngehsi Newanforbi, declare:

1. I am Petitioner. The statements below concern my own experience, records I prepared or received, and documents I can identify. I do not have personal knowledge of CHP's undisclosed deliberations. I would testify to the facts stated below if called.

2. On November 1, 2024, I was in a rented Tesla Model Y on the shoulder of eastbound Interstate 580 near Isabel Avenue in Livermore. I had stopped because I was tired and fell asleep. The officers contacted me there. I described my trip and why I had stopped. My account of tiredness is not an expert opinion about a blood-alcohol concentration.

3. I prepared the transcript submitted as Exhibit 5 to my petition by listening to the incident recording and recording the words I heard with timestamps. Bracketed descriptions are my descriptions of visible or audible events, not spoken quotations. I offer the transcript as an aid to comparison with the original recording; where they differ, the recording should control.

4. I answered the officers' questions and participated in the eye-movement and time-estimation exercises. I am not qualified to interpret HGN, and I do not claim that my own impression of

completing a test establishes a passing result. My recollection is that I felt tired, understood the questions and tried to follow the instructions.

5. When the walk-and-turn was proposed, I said I thought we could do it. I heard Officer Melano raise concerns about the freeway shoulder and uneven ground, and the officers did not administer that test. That is the exchange identified in my transcript at approximately 01:10:14–01:10:30. My earlier uncertainty about balancing on one leg concerned the one-leg-stand, not the subsequent walk-and-turn.

6. Officer Meza-Gonzales told me the roadside PAS was not required. I declined it. The officers then directed me to turn around, handcuffed me, transported me and took me to jail. I did not consent to being placed under arrest, handcuffed, transported or confined. I distinguish my refusal of the roadside PAS from later requests for post-arrest chemical testing.

7. I reported my concerns about the officers' conduct to CHP and POST. My certification submission included incident information and the transcript so that the asserted conduct could be evaluated. I remain willing to provide truthful information and reasonably requested assistance concerning the alleged unlawful restraint.

8. I am not aware of any request that I refused or failed to comply with for assistance in investigating the alleged unlawful restraint by the officers. This statement concerns that alleged conduct, not whether I consented to every request during the DUI investigation of me.

9. On April 9, 2026, I sent CHP my request for Form I-918 Supplement B certification and its supporting materials. I received the April 20, 2026 denial signed by Captain G. Serrato. True copies of the request and denial are already designated as Petition Exhibits 2 and 1, respectively. I do not infer from the denial's length what CHP did or did not review internally.

10. On October 23, 2026, I received counsel's production communication identifying four video files and documents, including AGO 000022–000025, AGO 000029–000054, AGO 000061 and a privilege log. Exhibit A to this declaration is the production communication and accompanying service declaration. Exhibit B is the produced CHP report, forms and warrant materials, AGO

000029–000053. Exhibit C is the privilege log. These copies are unchanged from the versions I received.

11. The Bates-stamped documents identify their contents and dates. I do not claim that they establish everything that existed in CHP's certification file, that a May memorandum proves no earlier review occurred, or that any withheld document says anything not disclosed in the log.

12. Exhibit D is the clerk's confirmation for my September 8, 2026 lodging submission. It states that the notice of lodging and declaration were accepted and the accompanying proof of service was rejected for formatting. I do not represent that this confirmation itself establishes acceptance of the media, admission of the recording into evidence, or effective service. The recording and service status must be established by the appropriate records and procedures.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, at _____, California.

Signature: _____

BRENDAN NGEHSI NEWANFORBI